

24STCV15663 24STCV15663

County: los-angeles

Division: Civil Law and Motion

Department: 224

Hearing date: 2026-06-25

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Case Number: 24STCV15663 Hearing Date: June 25, 2026 Dept: 224

Bertha Johnson, an Individual v. Greyco Global, LLC et al.,

TENTATIVE RULING

The OSC is CONTINUED for a final time to November 19, 2026 at 9:00 a.m. Plaintiff is to remedy the deficiencies noted herein. Plaintiff shall submit its updated default judgment package 10 days before the hearing.

The Court also sets an Order to Show Cause Re Dismissal Pursuant to CRC 3.1340(a); CRC 3.110(g)-(i) for Failure to Timely Obtain Entry of a Default and prosecute. The Court will dismiss the action at the next hearing and no further continuances will be granted.

The court sets a Judgment hearing for the same day and time. If a corrected default judgment package is not filed by the Court's deadline, counsel is subject to sanctions and entry of judgment against Plaintiff for failure to prove case.

Declarations in response to the Orders to Show Cause are due five court days before the hearings.

FACTS OF THE CASE:

Plaintiff brings a single cause of action for breach of a written contract against defendants Greyco Global, LLC and Campbell Grey. The Complaint states that the parties entered a written "Design/Build Bid Contract" on or about June 20, 2020 (the contract header is dated June 19, 2020, and Plaintiff's later filings date it June 12, 2020) for a full remodel of Plaintiff's duplex at 3963 LaSalle Avenue, Units 3962 and 3964, Los Angeles, CA 90062. Plaintiff alleges that Defendants breached the contract by failing to complete the work and abandoning the project, that in January 2021 Defendant agreed to return all funds Plaintiff had paid but has as of yet returned nothing, and that Plaintiff was forced to hire a replacement contractor to complete the work. Plaintiff seeks \$80,000 in damages.

PROOF OF SERVICE/DEFAULT: Default previously entered on 03/10/2025

PRINCIPAL REQUESTED: \$ 80,000.00

COSTS: \$ 545.00

TOTAL: \$ 80,545.00

ANALYSIS:

Entry of default is not void as the plaintiff did not file an amended complaint after default was entered, and the defendant did not appear before default was entered. There is no pending motion to vacate default.

Plaintiff submitted both a proposed judgment on a JUD-100 form and a declaration in support.

The principal sought (\$80,000) in the proposed judgment does not exceed the amount demanded in the Complaint (\$80,000). Attorney's fees are requested in the complaint, but not in the proposed judgment.

PROBLEMS:

The JC Form CIV-100 was used to request entry of default, but neither item 1d, nor item #2, nor the declaration of non-military status section (as regards Campbell Grey) of said form were filled out.

The proposed judgment claims \$545 in costs, but CIV-100 item 7 (memorandum of costs) was not filled out or properly verified.

Plaintiff has not dismissed DOES 1-10. The Complaint alleges a contract date of June 20, 2020, the contract header reads June 19, 2020, and the Summary and Plaintiff's declaration state a contract date of June 12, 2020. Further, the Court finds that Damages are unsupported by the evidence. The only evidence offered is the contract itself, which shows its \$80,000 value but not the extent to which Plaintiff actually lost money. There is no proof of amounts actually paid to Defendants, no contract with a replacement contractor, and no other form of damages calculation. The \$80,000 figure appears to be the original contract price, carried over as the damages number. The Complaint and Summary alternately describe the damages as both a restitution of "all funds paid" by Plaintiff to Defendants and as the costs incurred by Plaintiff hiring a replacement contractor to complete the work. These are different measures that would theoretically produce different numbers, and neither is verified.

As to the other currently on-calendar Order to Show Cause re Dismissal for Failure to Prosecute, Plaintiff's attorney has submitted a declaration attributing the delay in obtaining a default judgment to ongoing settlement communications with Defendant Campbell Grey, who has through email claimed that he intends to pay and resolve the matter. However, it is not clear based on the evidence before the Court why Defendant owes any money at all. There is no proof Plaintiff ever made any payments on the contract, or what amounts were paid. The Court finds Plaintiff has failed to prove claims and entitlement to judgment or any sums.

Plaintiff will need to file a brief with legal authority establishing the elements of all claims, proof of damages, and the legal theories supporting damages. This will be Plaintiff's final opportunity to prove their case. Otherwise judgment will be entered for the Defendant at the next hearing, with Plaintiff to take nothing.

DISPOSITION:

The OSC is CONTINUED for a final time to November 19, 2026 at 9:00 a.m. Plaintiff is to remedy the deficiencies noted herein. Plaintiff shall submit its updated default judgment package 10 days before the hearing.

The Court also sets an Order to Show Cause Re Dismissal Pursuant to CRC 3.1340(a); CRC 3.110(g)-(i) for Failure to Timely Obtain Entry of a Default and prosecute. The Court will dismiss the action at the next hearing and no further continuances will be granted.

The court sets a Judgment hearing for the same day and time. If a corrected default judgment package is not filed by the Court's deadline, counsel is subject to sanctions and entry of judgment against Plaintiff for failure to prove case.

Declarations in response to the Orders to Show Cause are due five court days before the hearings.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.